

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.

11. S-CV-0056024 IN RE THE PETITION OF GARDNER, JESSICA

Petition for Approval of Minor's Compromise Claim (Ryder Gardner)

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

12. S-CV-0056214 CARSON, CHRISTOPHER v. BUDAC, ABIGAILA

The demurer is continued to **July 2, 2026, at 8:30 a.m. in Department 3.**

13. S-CV-0056706 ZAVALA, MARIO v. GENERAL MOTORS

The demurrer is dropped from calendar in light of defendant filing an amended answer with the court on May 21, 2026.

14. S-CV-0056779 DALO, SAMAN v. STATE COMMISSIONER

Petition for Mandamus

Between May 24 and August 16, 2021, petitioner called 911 hundreds of times; threatened the dispatchers who answered his telephone calls; demanded to know a dispatcher's name and personal address; and threatened to shoot or kill police officers who came to his house.

Petitioner was thereafter charged with a violation of Penal Code section 646.9(a) (felony stalking), two violations of Penal Code section 69 (felony counts of resisting an executive officer), and a violation of Penal Code section 653x(a) (misdemeanor count of making unlawful 911 calls). Petitioner pled no contest to the violation of Penal Code section 646.9(a) and the remaining charges were dismissed. Petitioner was sentenced to 45 days in county jail, two years of probation, and ordered to pay court fines. Petitioner's probation was terminated early, his felony stalking conviction was reduced to a misdemeanor, and the conviction was eventually dismissed pursuant to Penal Code section 1203.4. Petitioner did not report his conviction to the Department of Real Estate.

The Department of Real Estate revoked petitioner's real estate license based on the above conduct.

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Petitioner sought review before the Department of Real Estate, Department of Consumer Affairs. The court there denied petitioner's claim and found the Department of Real Estate properly revoked his license pursuant to Business and Professions Code sections 490, subdivision (a) and 10177, subdivisions (b)(1) and (d).

Petitioner Saman Dalo now petitions this court for mandamus relief challenging the Department of Real Estate's decision to revoke his real estate license.

Trial courts reviewing a petition for mandamus in this scenario apply the independent judgment standard of review. (*Vaill v. Edmonds* (1991) 4 Cal.App.4th 247, 257.) This requires the court to "weigh the evidence and make its own determination as to whether the administrative findings should be sustained." (*Id.* at 258.) However, the determination of the penalty imposed is afforded great deference to the administrative agency's findings and only disturbed if there has been an abuse of discretion. (*Deegan v. City of Mountain View* (1999) 72 Cal.App.4th 37, 45–47.)

Business and Professions Code section 10177, subdivision (b)(1) provides the Commissioner of the Department of Real Estate may revoke a real estate license where the licensee "Entered a plea of . . . no contest to . . . a felony, or a crime substantially related to the qualifications, functions, or duties of a real estate licensee . . . irrespective of an order granting probation following that conviction, suspending the imposition of sentence, or of a subsequent order under Section 1203.4 of the Penal Code allowing that licensee to withdraw that licensee's plea of guilty and to enter a plea of not guilty, or dismissing the accusation or information." (Bus. & Prof. Code, § 10177, subd. (b)(1).)

Business and Professions Code section 10177, subdivision (d) also provides the Commissioner of the Department of Real Estate to revoke a real estate license where the licensee "Willfully disregarded or violated this part or Chapter 1 (commencing with Section 11000) of Part 2 or the rules and regulations of the commissioner for the administration and enforcement of this part and Chapter 1 (commencing with Section 11000) of Part 2." (Bus. & Prof. Code, § 10177, subd. (d).) One such requirement is for the licensee to report "(A) The bringing of a criminal complaint, information, or indictment charging a felony against the licensee [and] (B) The conviction of the licensee, including any verdict of guilty, or plea of guilty or no contest, of any felony or misdemeanor." (Bus. & Prof. Code, § 10186.2, subd. (a)(1)(A)–(B).)

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Business and Professions Code section 490 additionally allows the Department of Real Estate to revoke a licensee's real estate license "on the ground that the licensee has been convicted of a crime, if the crime is substantially related to the qualifications, functions, or duties of the business or profession for which the license was issued." (Bus. & Prof. Code, § 490, subd. (a).)

For purposes of Business and Profession Code sections 490 and 10177, a crime is substantially related to the qualifications, functions, or duties of a licensee if the crime is an "unlawful act . . . with the intent or threat of doing substantial injury to the person or property of another." (Cal. Code Regs., tit. 10, § 2910, subd. (a)(8).)

Here, a careful review of the record reveals there is sufficient evidence for the court to determine that petitioner's no contest plea, and subsequent conviction, to a violation of Penal Code section 646.9(a) is a crime that substantially related to the qualifications, functions, or duties of a real estate licensee because threatening the lives of police officers and dispatchers constitutes a threat of substantial injury to a person. (Bus. & Prof. Code, §§ 490, subd. (a), 10177, subd. (b)(1); Cal. Code Regs., tit. 10, § 2910, subd. (a)(8).) Moreover, there is no evidence in the record that petitioner informed the Department of Real Estate about either the criminal complaint or information or the subsequent conviction based on the no contest plea. (Bus. & Prof. Code, § 10186.2, subd. (a)(1)(A)–(B).) The administrative court's findings are sustained.

When determining whether to revoke a real estate license after a licensee has completed a criminal sentence at issue without a violation of parole or probation or the board, after applying the criteria for rehabilitation finds the applicant has been rehabilitated, the board shall evaluate the follow rehabilitation criteria to determine whether the licensee has made a showing of rehabilitation. (Bus. & Prof. Code, § 482.) The criteria includes:

- (a) The time that has elapsed since commission of the act(s) or offense(s):
 - (1) The passage of less than two years after the most recent criminal conviction or act of the licensee that is a cause of action in the Bureau's Accusation against the licensee is inadequate to demonstrate rehabilitation.
 - (2) Notwithstanding subdivision (a)(1), above, the two year period may be increased based upon consideration of the following:
 - (A) The nature and severity of the crime(s) and/or act(s) committed by the licensee.

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- (B) The licensee's history of criminal convictions and/or license discipline that are "substantially related" to the qualifications, functions, or duties of a real estate licensee.
- (b) Restitution to any person who has suffered monetary losses through "substantially related" acts or omissions of the licensee, or escheat to the State of these monies or other properties if the victim(s) cannot be located.
- (c) Expungement of the conviction(s) which culminated in the administrative proceeding to take disciplinary action.
- (d) Expungement or discontinuance of a requirement of registration pursuant to the provisions of Section 290 of the Penal Code.
- (e) Successful completion or early discharge from probation or parole.
- (f) Abstinence from the use of controlled substances and/or alcohol for not less than two years if the criminal conviction was attributable in part to the use of a controlled substance and/or alcohol.
- (g) Payment of any fine imposed in connection with the criminal conviction that is the basis for revocation or suspension of the license.
- (h) Correction of business practices responsible in some degree for the crime or crimes of which the licensee was convicted.
- (i) New and different social and business relationships from those which existed at the time of the commission of the acts that led to the criminal conviction or convictions in question.
- (j) Stability of family life and fulfillment of parental and familial responsibilities subsequent to the criminal conviction.
- (k) Completion of, or sustained enrollment in, formal educational or vocational training courses for economic self-improvement.
- (l) Significant and conscientious involvement in community, church or privately-sponsored programs designed to provide social benefits or to ameliorate social problems.
- (m) Change in attitude from that which existed at the time of the commission of the criminal acts in question as evidenced by any or all of the following:
- (1) Testimony and/or other evidence of rehabilitation submitted by the licensee.
 - (2) Evidence from family members, friends and/or other persons familiar with the licensee's previous conduct and with subsequent attitudes and/or behavioral patterns.
 - (3) Evidence from probation or parole officers and/or law enforcement officials competent to testify as to licensee's social adjustments.
 - (4) Evidence from psychiatrists, clinical psychologists, sociologists or other persons competent to testify with regard to neuropsychiatric or emotional disturbances.

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(5) Absence of subsequent felony convictions, misdemeanor convictions, or other conduct that provides grounds to discipline a real estate licensee, which reflect an inability to conform to societal rules when considered in light of the conduct in question.

Here, petitioner has established slight rehabilitation through the passage of time and engagement in AA. However, his refusal to express remorse for his conduct expresses he has not fully rehabilitated. (*Seide v. Committee of Bar Examiners* (1989) 49 Cal.3d 933, 940.)

Accordingly, petitioner's writ of mandamus is denied.

15. S-PR-0005952 JULIUS, IRENE - IN RE THE TRUST OF

Amended Motion for an Order for the Assignment of Rights to Payment and Related Relief

On October 7, 2014, the court found in favor of Jamey Julius and entered judgment against Ami Baldin for abusing her position as trustee. Ami Baldin is married to Adam Baldwin.

In 2024, Jamey Julius renewed the judgment for \$337,797.68 and assigned his rights to the judgment to Crystal Bergstrom.

Crystal Bergstrom, the assigned judgment creditor, moves for an order for the assignment of rights to payment and related relief pursuant to Code of Civil Procedure section 708.510.

Courts—upon an application of the judgment creditor on noticed motion—“may order the judgment debtor to assign to the judgment creditor or to a receiver appointed . . . all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments. . . .” (Code Civ. Proc., § 708.510, subd. (a).) The statute provides a non-exhaustive list of payments that may be assigned, including: “(1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. (2) Rents. (3) Commissions. (4) Royalties. (5) Payments due from a patent or copyright. (6) Insurance policy loan value.” (*Id.* at subd. (a)(1)–(6).) Any right to payment assigned must only be to the extent necessary to satisfy the money judgment. (*Id.* at subd. (d).)